

|                                                                       |                  |                            |
|-----------------------------------------------------------------------|------------------|----------------------------|
| <b>U.S. GOVERNMENT LEASE FOR REAL PROPERTY</b><br><b>(Short Form)</b> | 1a. LEASE NUMBER | 1b. BUILDING NUMBER<br>N/A |
|                                                                       |                  |                            |

**PART I - OFFER (Offeror completes Section A, C and D; Government shall complete Section B)**

**NOTE: All offers are subject to the terms and conditions outlined in Request for Lease Proposals No. 36C25025R0007, Supplemental Lease Requirements document 36C25025L0008, General Clauses (GSA Form 3517A), and any other attachments included herein.**

| A. LOCATION AND DESCRIPTION OF PREMISES OFFERED FOR LEASE BY GOVERNMENT |                                                                                           |                                                                                                                                                                    |                                                                                                                                                       |
|-------------------------------------------------------------------------|-------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. NAME AND ADDRESS OF PARKING (Include nine-digit ZIP Code)            | 2. LOCATION(S) IN BUILDING                                                                |                                                                                                                                                                    |                                                                                                                                                       |
|                                                                         | 2a. FLOOR(S)<br><u>N/A</u>                                                                | 2b. ROOM NUMBER(S)<br><u>N/A</u>                                                                                                                                   | 2e. NUMBER OF PARKING SPACES OFFERED<br>STRUCTURED <u>N/A</u>                                                                                         |
|                                                                         | 2c. SQ. FT.<br>RENTABLE <u>N/A</u><br>ABOA <u>N/A</u><br>Common Area Factor<br><u>N/A</u> | 2d. TYPE<br><input type="checkbox"/> GENERAL OFFICE<br><input type="checkbox"/> WAREHOUSE<br><input checked="" type="checkbox"/> OTHER (Specify)<br><u>Parking</u> | SURFACE <u>80</u><br>ANNUAL PARKING RATES (IF NOT INCLUDED IN RATES UNDER PART C BELOW)<br>STRUCTURED \$ <u>N/A</u> /space<br>SURFACE \$ _____ /space |
|                                                                         |                                                                                           |                                                                                                                                                                    |                                                                                                                                                       |
|                                                                         |                                                                                           |                                                                                                                                                                    |                                                                                                                                                       |

B. TERM

3a. To have and to hold the said Premises with its appurtenances for the term beginning upon acceptance of the Premises as required by this Lease and continuing for a period of **20 Years, 20 Years Firm**, subject to termination and renewal rights as may be hereinafter set forth. The commencement date of this Lease, along with any applicable termination and renewal rights, shall be more specifically set forth in a Lease Amendment upon substantial completion and acceptance of the Space by the Government.

3b. The Government may terminate this Lease, in whole or in parts, at any time effective after the Firm Term of this Lease, by providing not less than N/A days prior written notice to the Lessor. The effective date of the termination shall be the day following the expiration of the required notice period or the termination date set forth in the notice, whichever is later. No rental shall accrue after the effective date of termination.

3c. This Lease may be renewed at the option of the Government for a term of 0 YEARS at the rental rate(s) set forth below, provided notice is given to the Lessor at least 0 days before the end of the original Lease term; all other terms and conditions of this Lease, as same may have been amended, shall remain in full force and effect during any renewal term.

| C. RENTAL                                                                                                                                                                                                                                                                                                                                                                                                                              |                         |                                                                         |                            |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------|-------------------------------------------------------------------------|----------------------------|
| 4. Rent shall be payable in arrears and will be due on the first workday of each month. When the date for commencement of the lease falls after the 15th day of the month, the initial rental payment shall be due on the first workday of the second month following the commencement date. Rent for a period of less than a month shall be prorated. Rent shall not be adjusted for changes in real estate taxes or operating costs. |                         |                                                                         |                            |
| 5a. AMOUNT OF ANNUAL RENT                                                                                                                                                                                                                                                                                                                                                                                                              | 5b. RATE PER MONTH      | 5c. RATE PER PARKING SPACE                                              |                            |
| RENTAL RATE BREAKDOWN                                                                                                                                                                                                                                                                                                                                                                                                                  | FIRM TERM (\$/RSF/YEAR) | NON-FIRM TERM (\$/RSF/YEAR)                                             | RENEWAL TERM (\$/RSF/YEAR) |
| 6. BUILDING SHELL RENT (INCL. REAL ESTATE TAXES)                                                                                                                                                                                                                                                                                                                                                                                       | 6a. <u>\$N/A</u>        | 6b. <b>Same as 6a</b>                                                   | 6c. <u>\$N/A</u>           |
| 7. OPERATING RENT                                                                                                                                                                                                                                                                                                                                                                                                                      | 7a. <u>\$N/A</u>        | 7b. <b>Same as 7a</b>                                                   | 7b. <b>Same as 7a</b>      |
| 8. TURNKEYN TENANT IMPROVEMENT RENT (See blocks 12 and 13 below for additional breakdown of cost and amortization rate)                                                                                                                                                                                                                                                                                                                | 8a. <u>\$N/A</u>        | 8b. <u>\$N/A</u>                                                        | 8c. <u>\$N/A</u>           |
| 9. BUILDING SPECIFIC AMORTIZED CAPITAL (IF APPLICABLE)                                                                                                                                                                                                                                                                                                                                                                                 | 9a. <u>\$N/A</u>        | 9b. <u>\$N/A</u>                                                        | 9c. <u>\$N/A</u>           |
| 10. TOTAL RENT                                                                                                                                                                                                                                                                                                                                                                                                                         | 10a. \$ _____           | 10b. \$ _____                                                           | 10c. \$ _____              |
| 11. TENANT IMPROVEMENT COSTS<br><u>N/A</u>                                                                                                                                                                                                                                                                                                                                                                                             |                         | 12. INTEREST RATE TO AMORTIZE TENANT IMPROVEMENTS<br><u>N/A</u>         |                            |
| 13. HVAC OVERTIME RATE PER HOUR<br><u>N/A</u>                                                                                                                                                                                                                                                                                                                                                                                          |                         | 14. ADJUSTMENT FOR VACANT PREMISES RATE (\$/ABOA SF/YEAR)<br><u>N/A</u> |                            |

**D. OWNER IDENTIFICATION AND CERTIFICATION****15. RECORDED OWNER**

|              |           |                                     |              |
|--------------|-----------|-------------------------------------|--------------|
| 15a. Name    |           | 15b. Unique Entity Identifier (UEI) |              |
| 15c. Address | 15d. City | 15e. State                          | 15f. ZIP + 4 |

16. BY SUBMITTING THIS OFFER, THE OFFEROR AGREES UPON ACCEPTANCE OF THIS PROPOSAL BY HEREIN SPECIFIED DATE, TO LEASE TO THE UNITED STATES OF AMERICA, THE PREMISES DESCRIBED, UPON THE TERMS AND CONDITIONS AS SPECIFIED HEREIN, IN FULL COMPLIANCE WITH AND ACCEPTANCE OF THE AFOREMENTIONED RLP, WITH ATTACHMENTS.

☐ I have read the RLP with attachments in its entirety and am requesting no deviations

**17. OFFEROR'S INTEREST IN PROPERTY**

☐ OWNER ☐ AUTHORIZED AGENT ☐ OTHER (Specify)

**18. OFFEROR ☐ Check if same as Recorded Owner**

|                          |              |                     |                       |                  |
|--------------------------|--------------|---------------------|-----------------------|------------------|
| 18a. NAME                | 18b. ADDRESS | 18c. CITY           | 18d. STATE            | 18e. ZIP + 4     |
| 18f. Title               |              | 18g. E-mail address | 18h. Telephone Number |                  |
| 18i. OFFEROR'S SIGNATURE |              |                     |                       | 18j. DATE SIGNED |

**PART II - AWARD (To be completed by Government)**

1. Your offer is hereby accepted. This award consummates the Lease, which consists of the following attached documents: (a) this GSA Form 3626, (b) Supplemental Lease Requirements, (c) Security Requirements, (d) Agency Specific Requirements, (e) Floor Plan delineating the Premises, (f) GSA Form 3517A, General Clauses (Acquisition of Leasehold Interests in Real Property for Small Leases), and (g) the following building improvements, changes or additions made or agreed to by you (for example, energy efficiency and conservation improvements, (if applicable)):

**2. THIS DOCUMENT IS NOT BINDING ON THE GOVERNMENT OF THE UNITED STATES OF AMERICA UNLESS SIGNED BELOW BY AUTHORIZED LEASE CONTRACTING OFFICER.**

|                                                       |                                            |          |
|-------------------------------------------------------|--------------------------------------------|----------|
| 3a. NAME OF LEASE CONTRACTING OFFICER (Type or Print) | 3b. SIGNATURE OF LEASE CONTRACTING OFFICER | 3c. DATE |
|-------------------------------------------------------|--------------------------------------------|----------|

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## SECTION 1 GENERAL TERMS, CONDITIONS, AND STANDARDS

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### 1.01 DEFINITIONS AND GENERAL TERMS (SMALL) (OCT 2023)

Unless otherwise specifically noted, all terms and conditions set forth in this Lease shall be interpreted by reference to the following definitions, standards, and formulas:

#### A. Real Property Terms.

1. "ANSI/BOMA" is an acronym for American National Standards Institute/Building Owners and Managers Association.
2. "ANSI/BOMA Occupant Area" or "ABOA" means the measurement standard (Z65.1-2017) provided by ANSI/BOMA for Occupant Area, which is "the total aggregated area used by an Occupant before Load Factors are applied, consisting of Tenant Area and Tenant Ancillary Area." The Method A – Multiple Load Factor Method shall apply.
3. "Common Area Factor (CAF)" means a conversion factor determined and applied by the building owner to determine the rentable square feet for the leased space. The CAF is expressed as a percentage of the difference between the amount of rentable square feet (SF) and ABOA SF, divided by the ABOA SF. The CAF shall be determined in accordance with the applicable ANSI/BOMA standard for the type of space to which the CAF shall apply.
4. "Rentable Space or Rentable Square Feet (RSF)" means the area for which a tenant is charged rent. It is determined by the building owner and may vary by city or by building within the same city. Rentable space may include a share of common areas such as elevator lobbies, building corridors, and floor service areas. Floor service areas typically include restrooms, janitor rooms, telephone closets, electrical closets, and mechanical rooms. Rentable space does not include vertical building penetrations and their enclosing walls, such as stairs, elevator shafts, and vertical ducts. To determine the RSF, the ABOA SF is multiplied by the sum of one (1) plus the CAF, for each type of space included in the premises.
5. "Space" means that part of the premises to which the Government has exclusive use, such as occupant area, or other types of space. Appurtenant areas (e.g., parking areas) to which the Government has rights under the lease are not included in the space.

### 1.02 PUBLIC TRANSPORTATION (SMALL) (SEP 2015) INTENTIONALLY DELETED

### 1.03 AUTHORIZED REPRESENTATIVES (OCT 2016)

Signatories to this Lease shall have full authority to bind their respective principals with regard to all matters relating to this Lease. No other persons shall be understood to have any authority to bind their respective principals except to the extent that such authority may be explicitly delegated by notice to the other party, or to the extent that such authority is transferred by succession of interest. The Government shall have the right to substitute its Lease Contracting Officer (LCO) by notice without an express delegation by the prior LCO.

### 1.04 WAIVER OF RESTORATION (OCT 2023)

Lessor shall have no right to require the Government to restore the Premises upon expiration or earlier termination (full or partial) of the Lease, and waives all claims against the Government for:

- A. Waste, or,
- B. Damages or restoration arising from or related to:

1. The Government's normal and customary use of the Premises during the term of the Lease (including any extensions thereof), as well as
2. Any initial or subsequent alteration to the Premises regardless of whether such alterations are performed by the Lessor or by the Government.

At its sole option, the Government may abandon property in the Space following expiration or earlier termination (full or partial) of the Lease, in which case the property will become the property of the Lessor, and the Government will be relieved of any liability in connection therewith.

#### **1.05 NOVATION AND CHANGE OF OWNERSHIP (SMALL) (OCT 2016)**

Consistent with GSAM 570.115, in the event of a transfer of ownership of the leased premises or a change in the Lessor's legal name, FAR 42.12 applies.

#### **1.06 ASBESTOS (SMALL) (OCT 2021)**

The leased space shall be free of all asbestos containing materials, except undamaged asbestos flooring in the space or undamaged boiler or pipe insulation outside the space, in which case an asbestos management program conforming to Environmental Protection Agency guidance shall be implemented. The space shall be free of other hazardous materials and in compliance with applicable Federal, State, and local environmental laws and regulations. If asbestos abatement work is to be performed in the Space after occupancy, the Lessor shall provide relocation and submit to the Government documentation that the abatement was done in accordance with OSHA, EPA, DOT, state, and local regulations and guidance and that final clearance for re-occupancy was achieved.

#### **1.07 ADJUSTMENT FOR VACANT PREMISES (SMALL) (OCT 2022) INTENTIONALLY DELETED**

#### **1.08 ENTITY NAME (OCT 2023)**

Lessor may not use Federal agency name(s) and/or acronym(s), e.g., General Services Administration, GSA; Department of Veterans Affairs (VA, VHA, VBA) in the entity name that owns and/or leases the Space to VA.

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## SECTION 2 CONSTRUCTION STANDARDS AND SHELL COMPONENTS

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### 2.01 WORK PERFORMANCE (SMALL) (SEP 2015)

All work in performance of this Lease shall be done by skilled and licensed workers or mechanics and shall be acceptable to the LCO.

### 2.02 EXISTING FIT-OUT, SALVAGED, OR REUSED BUILDING MATERIAL (SMALL) (SEP 2015) INTENTIONALLY DELETED

### 2.03 WOOD PRODUCTS (SMALL) (OCT 2023) INTENTIONALLY DELETED

### 2.04 ADHESIVES AND SEALANTS (SMALL) (OCT 2020) INTENTIONALLY DELETED

### 2.05 BUILDING SHELL REQUIREMENTS (SMALL) (OCT 2019) INTENTIONALLY DELETED

### 2.06 RESPONSIBILITY OF THE LESSOR AND LESSOR'S ARCHITECT/ENGINEER (SMALL) (SEP 2015)

The Lessor remains solely responsible for designing, constructing, operating, and maintaining the leased premises in full accordance with the requirements of the Lease. The Lessor shall, without additional compensation, correct or revise any errors or deficiencies in its designs, drawings, specifications, or other services, as noted by the Government's review or otherwise.

### 2.07 MEANS OF EGRESS (MAY 2015)

- A. Prior to occupancy, the Premises and any parking garage areas shall meet or will be upgraded to meet either the applicable egress requirements in the National Fire Protection Association, Life Safety Code (NFPA 101) or the International Code Council, International Building Code (IBC), each current as of the Lease Award Date, or use an alternative approach or method that achieves an equivalent level of safety deemed acceptable by the Government.
- B. INTENTIONALLY DELETED
- C. INTENTIONALLY DELETED
- D. INTENTIONALLY DELETED
- E. INTENTIONALLY DELETED

### 2.08 AUTOMATIC FIRE SPRINKLER SYSTEM (OCT 2023)

- A. Any portion of the Space located below-grade, including parking garage areas, and all areas in a Building referred to as "hazardous areas" (defined in National Fire Protection Association (NFPA) 101) that are located within the entire Building (including non-Government areas) shall be protected by an automatic fire sprinkler system or an equivalent level of safety.
- B. For Buildings in which any portion of the Space on or above the sixth floor, then, at a minimum, the Building up to and including the highest floor of Government occupancy shall be protected by an automatic fire sprinkler system or an equivalent level of safety.
- C. For Buildings in which the Government occupies, either through this Lease or in combination with other Government Leases in the Building any portion of the Space is on or above the sixth floor, and lease of the Space will result, either individually or in combination with other Government Leases in the Building, in the Government leasing 35,000 or more ANSI/BOMA Occupant Area SF of Space in the Building, then the entire Building shall be protected throughout by an automatic fire sprinkler system or an equivalent level of safety.

- D. Automatic fire sprinkler system(s) shall be installed in accordance with the requirements of NFPA 13, Standard for the Installation of Sprinkler Systems that was in effect on the actual date of installation.
- E. Automatic fire sprinkler system(s) shall be maintained in accordance with the requirements of NFPA 25, Standard for the Inspection, Testing, and Maintenance of Water-based Fire Protection Systems (current as of the Lease Award Date).
- F. "Equivalent level of safety" means an alternative design or system (which may include automatic fire sprinkler systems), based upon fire protection engineering analysis, which achieves a level of safety equal to or greater than that provided by automatic fire sprinkler systems.

#### **2.09 FIRE ALARM SYSTEM (SEP 2013)**

- A. A Building-wide fire alarm system shall be installed in the entire Building in which any portion of the Space is located on the 3<sup>rd</sup> floor or higher.
- B. The fire alarm system shall be installed in accordance with the requirements of NFPA 72, National Fire Alarm and Signaling Code, that was in effect on the actual date of installation.
- C. The fire alarm system shall be maintained in accordance with the requirements of NFPA 72, National Fire Alarm and Signaling Code (current as of the Lease Award Date).
- D. The fire alarm system shall transmit all fire alarm signals to the local fire department via any of the following means: directly to the local fire department, to the (911) public communications center, to a central station, to a remote supervising station, or to a proprietary supervising station.
- E. If the Building's fire alarm control unit is over 25 years old as of the date of award of this Lease, Lessor shall install a new fire alarm system in accordance with the requirements of NFPA 72, National Fire Alarm and Signaling Code (current as of the Lease Award Date), prior to Government acceptance and occupancy of the Space.

#### **2.10 ENERGY INDEPENDENCE AND SECURITY ACT (SMALL) (SEP 2015)**

The Lessor shall either earn the ENERGY STAR® Label or complete all cost-effective energy efficiency and conservation improvements, agreed to by Lessor prior to acceptance of the Space (or not later than one year after the Lease Award Date of a succeeding or superseding Lease).

#### **2.11 ELEVATORS (SMALL) (OCT 2020) INTENTIONALLY DELETED**

#### **2.12 DEMOLITION (JUN 2012) INTENTIONALLY DELETED**

#### **2.13 ACCESSIBILITY (OCT 2024)**

The leased Space, and areas serving the leased Space shall be accessible to persons with disabilities in accordance with the Architectural Barriers Act Accessibility Standard (ABAAS), Appendices C and D to 36 CFR Part 1191 (ABA Chapters 1 and 2, and Chapters 3 through 10) and 36 CFR 1190 to the extent applicable. To the extent the standards referenced in the preceding sentence conflicts with local accessibility requirements, the more stringent shall apply.

#### **2.14 CEILINGS (SMALL) (OCT 2019) INTENTIONALLY DELETED**

#### **2.15 EXTERIOR AND COMMON AREA DOORS AND HARDWARE (SEP 2013) INTENTIONALLY DELETED**

#### **2.16 WINDOWS (SMALL) (OCT 2020) INTENTIONALLY DELETED**

#### **2.17 PARTITIONS: PERMANENT (SMALL) (OCT 2019) INTENTIONALLY DELETED**

#### **2.18 INSULATION: THERMAL, ACOUSTIC, AND HVAC (SMALL) (OCT 2020) INTENTIONALLY DELETED**



## **2.19 PAINTING – SHELL (SMALL) (OCT 2020)**

The Lessor shall bear the expense for all painting associated with the Building shell, including all common areas. Exterior perimeter walls and interior core walls within the Space shall be spackled and prime painted. If any Building shell areas are already painted prior to TIs, then the Lessor shall repaint, at the Lessor's expense, as necessary during TIs.

## **2.20 FLOORS AND FLOOR LOAD (SMALL) (OCT 2019) INTENTIONALLY DELETED**

## **2.21 MECHANICAL, ELECTRICAL, PLUMBING: GENERAL (SMALL) (SEP 2015) INTENTIONALLY DELETED**

## **2.22 DRINKING FOUNTAINS (OCT 2023) INTENTIONALLY DELETED**

## **2.23 RESTROOMS (SMALL) (OCT 2022) INTENTIONALLY DELETED**

## **2.24 HEATING, VENTILATION, AND AIR CONDITIONING – SHELL (SMALL) (OCT 2022) INTENTIONALLY DELETED**

## **2.25 TELECOMMUNICATIONS: DISTRIBUTION AND EQUIPMENT (SMALL) (SEP 2015) INTENTIONALLY DELETED**

## **2.26 TELECOMMUNICATIONS: LOCAL EXCHANGE ACCESS (SMALL) (OCT 2020) INTENTIONALLY DELETED**

## **2.27 LIGHTING: INTERIOR AND PARKING – SHELL (SMALL) (OCT 2022)**

Note. for pricing estimating purposes, fixtures will be installed at the average ratio of 1 fixture per 80 ABOA sf.

- A. Interior Fixtures. Light fixtures (and associated ballasts or drivers) shall be installed to match the other luminaries in the Space as either ceiling grid or pendant mounted for an open-office plan. Ceiling grid fixtures shall be either 2' wide by 4' long or 2' wide by 2' long. Lessor shall provide, as part of Shell Rent, a minimum overall lighting fixture efficiency of 85 percent. Lamps shall maintain a uniform color level throughout the lease term.
- B. Lighting Levels. Fixtures shall have a minimum of two tubes and shall provide 50 foot-candles at desktop level (30" above finished floor) with a maximum uniformity ratio of 1.5:1. Lessor shall provide, as part of Shell Rent, 10 average foot-candles in all other Building areas within the Premises with a uniformity ratio of 4:1. Emergency egress lighting levels shall be provided in accordance with the local applicable building codes (but not less than 1 foot-candle, measured at the floor) by either an onsite emergency generator or fixture mounted battery packs.
- C. Power Density. The maximum fixture power density shall not exceed 1.4 watts per ABOA SF.
- D. Building Perimeter. Exterior parking areas, vehicle driveways, pedestrian walks, and the Building perimeter lighting levels shall be designed per Illuminating Engineering Society (IES) standards. Provide 5 foot-candles for doorway areas, 3 foot-candles for transition areas and at least 1 foot-candle at the surface throughout the parking lot. Parking lot fixtures shall provide a maximum to minimum uniformity ratio of 15:1 and a maximum to average uniformity ratio of 4:1.
- E. Parking Structures. The minimum illuminance level for parking structures is 5 foot-candles as measured on the floor with a uniformity ratio of 10:1.
- F. Exterior Power Backup. Exterior egress, walkway, parking lot, and parking structure lighting must have emergency power backup to provide for safe evacuation of the Building.
- G. Video Surveillance System (VSS). Lighting shall be provided in such a manner to adequately support VSS operations, and not limit or preclude adequate fields of view.

2.28 INDOOR AIR QUALITY DURING CONSTRUCTION (SMALL) (OCT 2021) INTENTIONALLY DELETED

2.29 NATIONAL HISTORIC PRESERVATION ACT REQUIREMENTS - LEASE (SMALL) (SEP 2015)  
INTENTIONALLY DELETED

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**SECTION 3     DESIGN, CONSTRUCTION, AND POST AWARD ACTIVITIES**

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**3.01 SCHEDULE FOR COMPLETION OF SPACE (SMALL) (OCT 2020) INTENTIONALLY DELETED****3.02 ACCESS BY THE GOVERNMENT PRIOR TO ACCEPTANCE (SMALL) (OCT 2020)**

Subject to the Lessor's permission, which shall not be unreasonably withheld, the Government or its contractors shall have access to the Premises prior to acceptance of the Space to prepare the Space for occupancy. If the work to be completed by the Government is a prerequisite for the issuance of a Certificate of Occupancy, or its equivalent, the Government shall be entitled to at least 10 Working Days to complete work by its own contractors.

**3.03 ACCEPTANCE OF SPACE AND CERTIFICATE OF OCCUPANCY (SMALL) (OCT 2021)**

- A. The Government shall accept the Space only if the construction of Building shell and TIs, as applicable, conforming to this Lease and any layout drawings is substantially complete, as determined by the Lease Contracting Officer, and a Certificate of Occupancy (C of O) has been issued. The Space shall be considered substantially complete only if the Space may be used for its intended purpose and completion of remaining work will not interfere unreasonably with the Government's enjoyment of the Space.
- B. The Lessor shall provide a valid C of O, issued by the local jurisdiction, for the intended use of the Government. If the local jurisdiction does not issue C of O's or if the C of O is not available, the Lessor may satisfy this condition by providing a report prepared by a licensed fire protection engineer that indicates the Space and Building are compliant with all applicable local codes and ordinances and all fire protection and life safety-related requirements of this Lease.
- A. If applicable, upon acceptance of the Space, the Government will issue lump sum payment to the Lessor after substantial completion, in accordance with invoicing procedures outlined under any lease amendment(s) authorizing such lump sum payment. The Government shall not issue this payment in increments or as partial payments.

**3.04 LEASE TERM COMMENCEMENT DATE AND RENT RECONCILIATION (SMALL) (OCT 2021)**

The Lease Term Commencement Date, and final Space verification, shall be memorialized by Lease Amendment.

**3.05 AS-BUILT DRAWINGS (OCT 2021) INTENTIONALLY DELETED****3.06 SEISMIC RETROFIT (OCT 2020) INTENTIONALLY DELETED****3.07 GOVERNMENT PROJECT MANAGEMENT SYSTEM (OCT 2023)**

The Government may require the Lessor to use the Government's project management system for post-award and post-occupancy activities. This includes, but is not limited to, design submittals (DIDs, CD, as-builts), schedule submissions, pricing proposals, requests for information (RFI) that are directed toward the Government, and Green Lease Submittals, such as reuse plans, commissioning plans, and product data sheets. Licensing costs and access to the system are the responsibility of the Government.

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**SECTION 4     TENANT IMPROVEMENT COMPONENTS**

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**4.01 TENANT IMPROVEMENTS AND PRICING (SMALL) (SEP 2015)**

- A. The Lease is a fully serviced, turnkey Lease with a fixed rent that covers all Lessor costs, including all demolition, shell upgrades, TIs, insurance, operating costs, taxes, parking, and security upgrades. Rent will be based upon a proposed rental rate per parking space, limited by the offered rate and the parking spaces solicited under this RLP.
- B. INTENTIONALLY DELETED
- C. The Government shall have the right to make lump sum payments for any or all TI work.

**4.02 FINISH SELECTIONS (SMALL) (SEP 2015) INTENTIONALLY DELETED****4.03 WINDOW COVERINGS (SMALL) (OCT 2020) INTENTIONALLY DELETED****4.04 DOORS: SUITE ENTRY (SMALL) (OCT 2020) INTENTIONALLY DELETED****4.05 DOORS: INTERIOR (SMALL) (OCT 2019) INTENTIONALLY DELETED****4.06 DOORS: HARDWARE (SMALL) (SEP 2015) INTENTIONALLY DELETED****4.07 PARTITIONS: SUBDIVIDING (SMALL) (OCT 2022) INTENTIONALLY DELETED****4.08 PAINTING – TI (SMALL) (OCT 2020)**

Prior to acceptance, all surfaces within the Space which are designated by GSA for painting shall be newly finished in colors and type of paint acceptable to the Government.

**4.09 FLOOR COVERINGS AND PERIMETERS (SMALL) (OCT 2019) INTENTIONALLY DELETED****4.10 HEATING AND AIR CONDITIONING (SMALL) (OCT 2022) INTENTIONALLY DELETED****4.11 ELECTRICAL: DISTRIBUTION (SMALL) (SEP 2015) INTENTIONALLY DELETED****4.12 TELECOMMUNICATIONS: DISTRIBUTION AND EQUIPMENT (JUN 2012) INTENTIONALLY DELETED****4.13 TELECOMMUNICATIONS: LOCAL EXCHANGE ACCESS (AUG 2008) INTENTIONALLY DELETED****4.14 DATA DISTRIBUTION (OCT 2020) INTENTIONALLY DELETED****4.15 ELECTRICAL, TELEPHONE, DATA FOR SYSTEMS FURNITURE (OCT 2022) INTENTIONALLY DELETED****4.16 LIGHTING: INTERIOR AND PARKING – TI (SMALL) (SEP 2015)**

FIXTURES: Any additional lighting fixtures and/or components required beyond what would have been provided under the paragraph, "Lighting: Interior and Parking – Shell (SMALL)" are part of the TIs.

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**SECTION 5 UTILITIES, SERVICES, AND OBLIGATIONS DURING THE LEASE TERM**

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**5.01 PROVISION OF SERVICES, ACCESS, AND NORMAL HOURS (SMALL) (OCT 2020)**

The Government's normal hours of operations are established as **24 Hours Daily**, Monday through Friday, with the inclusive of Federal holidays. Services, maintenance, and utilities shall be provided during these hours. The Government shall have access to the Premises and its Appurtenant Areas at all times without additional payment, including the use, during other than normal hours, of necessary services and utilities such as elevators, restrooms, lights, and electric power. Cleaning shall be performed during normal hours.

**5.02 UTILITIES (SMALL) (OCT 2022)**

The Lessor is responsible for providing all utilities necessary for base Building and tenant operations as part of the rental consideration.

**5.03 HEATING AND AIR CONDITIONING (SMALL) (OCT 2024) INTENTIONALLY DELETED****5.04 OVERTIME HVAC USAGE (SMALL) (SEP 2016) INTENTIONALLY DELETED****5.05 JANITORIAL SERVICES (SMALL) (OCT 2021)**

The Lessor shall maintain the Premises and all areas of the Property to which the Government has routine access for the term of the Lease.

**5.06 MAINTENANCE OF PROVIDED FINISHES (SMALL) (SEP 2015) INTENTIONALLY DELETED****5.07 IDENTITY VERIFICATION OF PERSONNEL (OCT 2022) INTENTIONALLY DELETED****5.08 RANDOLPH-SHEPPARD COMPLIANCE (SMALL) (SEP 2015) INTENTIONALLY DELETED****5.09 INDOOR AIR QUALITY (OCT 2024) INTENTIONALLY DELETED****5.10 RADON IN AIR (OCT 2023) INTENTIONALLY DELETED****5.11 RADON IN WATER (JUN 2012) INTENTIONALLY DELETED****5.12 HAZARDOUS MATERIALS (OCT 2023)**

- A. The leased Space shall be free of hazardous materials, hazardous substances, and hazardous wastes, as defined by and according to applicable Federal, state, and local environmental regulations. Should there be reason to suspect otherwise, the Government reserves the right, at Lessor's expense, to require documentation or testing to confirm that the Space is free of all hazardous materials, substances, and wastes.
- B. Lessor shall, to the extent of its knowledge, notify Government of the introduction of any hazardous materials, substances, and wastes onto the Property by Lessor or others, including but not limited to, co-tenants occupying Space in the Building.
- A. Lessors are encouraged to prioritize products used in the build-out of Space that do not contain Per- and Polyfluoroalkyl Substances (PFAS). To view the current list of EPA standards and ecolabels that either restrict or eliminate the use of PFAS in certified products, visit [HTTPS://WWW.EPA.GOV/GREENERPRODUCTS/](https://www.epa.gov/greenerproducts/).

**5.13 MOLD AND WATER INTRUSION (OCT 2023) INTENTIONALLY DELETED****5.14 OCCUPANT EMERGENCY PLANS (OCT 2020)**

The Lessor is required to cooperate, participate, and comply with the development and implementation of the Government's Occupant Emergency Plan (OEP) and a supplemental Shelter-in Place (SIP) Plan. Periodically, the Government may request that the Lessor assist in reviewing and revising its OEP and SIP. The Plan, among other things, will include evacuation procedures and an annual emergency evacuation drill, emergency shutdown of air intake procedures, and emergency notification procedures for the Lessor's Building engineer or manager, Building security, local emergency personnel, and Government agency personnel.

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**SECTION 6     ADDITIONAL TERMS AND CONDITIONS**

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**6.01   SECURITY REQUIREMENTS (SMALL) (OCT 2019)**

The Lessor agrees to the requirements of Security Level I attached to this Lease. Level I Security is included in shell rent.

**6.02   MODIFIED LEASE PARAGRAPHS (OCT 2016)**

The following paragraphs have been modified in this Lease:

1.01  
2.27  
3.04  
4.01  
5.01  
5.05

**6.03   RENTAL CONSIDERATION FOR SMALL LEASES (OCT 2019)**

Rent shall be paid by electronic funds transfer (EFT) using the EFT information contained in the System for Award Management (SAM). In the event the EFT information changes, the Lessor shall be responsible for providing the updated information to SAM. Failure by the Lessor to maintain an active registration in SAM may result in delay of rental payments until such time as the SAM registration is activated. Rent shall be inclusive of all costs incurred by the Lessor for the construction of Building shell, Tenant Improvements (TIs) specified in the Lease, all taxes of any kind, and all operating costs. Unless a separate rate is specified, rights to parking areas will be deemed included in the rent.

**6.04   SWING SPACE - LEASE (OCT 2022) INTENTIONALLY DELETED**

SAGINAW PARKING LOT  
LEASE 36C25025L0008

| Rentable Spaces                | Firm Term | Firm Term                                            | Firm Term                 | Firm Term                 | Firm Term                 | Firm Term                 | Firm Term                |
|--------------------------------|-----------|------------------------------------------------------|---------------------------|---------------------------|---------------------------|---------------------------|--------------------------|
| 80                             |           | Start-Acceptance of Space April 1, 2025-Sept 30,2025 | Oct 1, 2025-Sept 30, 2026 | Oct 1, 2026-Sept 30, 2027 | Oct 1, 2027-Sept 30, 2028 | Oct 1, 2028-Sept 30, 2029 | Oct 1, 2029-Sept 30,2030 |
|                                | Parking   | Year 1 - 6 Months                                    | Year 1                    | Year 2                    | Year 3                    | Year 4                    | Year 5                   |
| Shell Rent <sup>1 w/BSAC</sup> | \$ 3.65   | \$ 1,752.00                                          | \$ 3,504.00               | \$ 3,504.00               | \$ 3,504.00               | \$ 3,504.00               | \$ 3,504.00              |
| Monthly Amount                 | \$ 292.00 | \$ 292.00                                            | \$ 292.00                 | \$ 292.00                 | \$ 292.00                 | \$ 292.00                 | \$ 292.00                |
| Total Annual Rent              |           | \$ 1,752.00                                          | \$ 3,504.00               | \$ 3,504.00               | \$ 3,504.00               | \$ 3,504.00               | \$ 3,504.00              |
| Option Period                  |           |                                                      |                           |                           |                           |                           |                          |
|                                |           | Firm Term                                            | Firm Term                 | Firm Term                 | Firm Term                 | Firm Term                 | Firm Term                |
|                                |           |                                                      | Oct 1, 2030-Sept 30, 2031 | Oct 1, 2031-Sept 30, 2032 | Oct 1, 2032-Sept 30, 2033 | Oct 1, 2033-Sept 30, 2034 | Oct 1, 2034-Sept 30 2035 |
|                                |           |                                                      | Year 6                    | Year 7                    | Year 8                    | Year 9                    | Year 10                  |
| Shell Rent <sup>1 w/BSAC</sup> | \$ 4.69   |                                                      | \$ 4,502.40               | \$ 4,502.40               | \$ 4,502.40               | \$ 4,502.40               | \$ 4,502.40              |
| Monthly Amount                 | \$ 375.20 | \$ -                                                 | \$ 375.20                 | \$ 375.20                 | \$ 375.20                 | \$ 375.20                 | \$ 750.40                |
| Total Annual Rent              |           | \$ -                                                 | \$ 4,502.40               | \$ 4,502.40               | \$ 4,502.40               | \$ 4,502.40               | \$ 4,502.40              |
| Option Period                  |           |                                                      |                           |                           |                           |                           |                          |
|                                |           | Firm Term                                            | Firm Term                 | Firm Term                 | Firm Term                 | Firm Term                 | Firm Term                |
|                                |           |                                                      | Oct 1, 2035-Sept 30, 2036 | Oct 1, 2036-Sept 30, 2037 | Oct 1, 2037-Sept 30, 2038 | Oct 1, 2038-Sept 30, 2039 | Oct 1, 2039-Sept 30 2040 |
|                                |           |                                                      | Year 11                   | Year 12                   | Year 13                   | Year 14                   | Year 15                  |
| Shell Rent <sup>1 w/BSAC</sup> | \$ 5.73   |                                                      | \$ 5,500.80               | \$ 5,500.80               | \$ 5,500.80               | \$ 5,500.80               | \$ 5,500.80              |
| Operating Costs <sup>2</sup>   |           |                                                      |                           |                           |                           |                           |                          |
| Monthly Amount                 | \$ 458.40 | \$ -                                                 | \$ 458.40                 | \$ 458.40                 | \$ 458.40                 | \$ 458.40                 | \$ 916.80                |
| Total Annual Rent              |           | \$ -                                                 | \$ 5,500.80               | \$ 5,500.80               | \$ 5,500.80               | \$ 5,500.80               | \$ 5,500.80              |
| Option Period                  |           |                                                      |                           |                           |                           |                           |                          |
|                                |           | Firm Term                                            | Firm Term                 | Firm Term                 | Firm Term                 | Firm Term                 | Firm Term                |
|                                |           |                                                      | Oct 1, 2040-Sept 30, 2041 | Oct 1, 2041-Sept 30, 2042 | Oct 1, 2042-Sept 30, 2043 | Oct 1, 2044-Sept 30, 2044 | Oct 1, 2044-Mar 31 2045  |
|                                |           |                                                      | Year 16                   | Year 17                   | Year 18                   | Year 19                   | End Year                 |
| Shell Rent <sup>1 w/BSAC</sup> | \$ 6.77   |                                                      | \$ 6,499.20               | \$ 6,499.20               | \$ 6,499.20               | \$ 6,499.20               | \$ 3,249.60              |
| Operating Costs <sup>2</sup>   |           |                                                      |                           |                           |                           |                           |                          |
| Monthly Amount                 | \$ 541.60 | \$ -                                                 | \$ 541.60                 | \$ 541.60                 | \$ 541.60                 | \$ 541.60                 | \$ 541.60                |
| Total Annual Rent              |           | \$ -                                                 | \$ 6,499.20               | \$ 6,499.20               | \$ 6,499.20               | \$ 6,499.20               | \$ 3,249.60              |



Saginaw Parking Lot – 1500 Weiss Road, Saginaw MI



**GENERAL CLAUSES****(Acquisition of Leasehold Interests in Real Property for Leases at or Below the Simplified Lease Acquisition Threshold - SLAT)**

| <b>CLAUSE NO.</b> | <b>48 CFR REF.</b>                                | <b>CLAUSE TITLE</b>                                                                                                               |
|-------------------|---------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------|
| 1                 | GSAR 552.270-4                                    | DEFINITIONS (DEVIATION)                                                                                                           |
| 2                 | GSAR 552.270-6                                    | MAINTENANCE OF THE PROPERTY, RIGHT TO INSPECT (DEVIATION)                                                                         |
| 3                 | GSAR 552.270-7                                    | FIRE AND CASUALTY DAMAGE (DEVIATION)                                                                                              |
| 4                 | GSAR 552.270-9                                    | INSPECTION – RIGHT OF ENTRY                                                                                                       |
| 5                 | GSAR 552.270-10                                   | DEFAULT BY LESSOR (DEVIATION)                                                                                                     |
| 6                 | GSAR 552.270-20                                   | PAYMENT (DEVIATION)                                                                                                               |
| 7                 | GSAR 552.270-27                                   | INTEGRATED AGREEMENT (DEVIATION)                                                                                                  |
| 8                 | GSAR 552.270-14                                   | CHANGES (DEVIATION)                                                                                                               |
| 9                 | GSAR 552.270-8                                    | COMPLIANCE WITH APPLICABLE LAW (DEVIATION)                                                                                        |
| 10                | FAR 52.204-21                                     | BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS                                                                      |
| 11                | FAR 52.252-2                                      | CLAUSES INCORPORATED BY REFERENCE                                                                                                 |
| 12                | <i>Clauses incorporated by reference include:</i> |                                                                                                                                   |
|                   | FAR 52.204-2                                      | SECURITY REQUIREMENTS                                                                                                             |
|                   | FAR 52.204-9                                      | PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL                                                                            |
|                   | FAR 52.204-10                                     | REPORTING EXECUTIVE COMPENSATION AND FIRST TIER SUBCONTRACT AWARDS                                                                |
|                   | FAR 52.204-13                                     | SYSTEM FOR AWARD MANAGEMENT MAINTENANCE                                                                                           |
|                   | FAR 52.204-19                                     | INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS                                                                  |
|                   | FAR 52.204-23                                     | PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES |
|                   | FAR 52.204-25                                     | PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT                            |
|                   | FAR 52.204-27                                     | PROHIBITION ON A BYTEDANCE COVERED APPLICATION                                                                                    |
|                   | FAR 52.209-6                                      | PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT          |

LESSOR:\_\_\_\_\_ GOVERNMENT:\_\_\_\_\_

EXHIBIT D

|                 |                                                                           |
|-----------------|---------------------------------------------------------------------------|
| FAR 52.215-10   | PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA              |
| FAR 52.215-12   | SUBCONTRACTOR CERTIFIED COST OR PRICING DATA                              |
| FAR 52.219-4    | NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS |
| FAR 52.219-9    | SMALL BUSINESS SUBCONTRACTING PLAN                                        |
| FAR 52.219-16   | LIQUIDATED DAMAGES – SUBCONTRACTING PLAN                                  |
| FAR 52.219-28   | POST-AWARD SMALL BUSINESS REREPRESENTATION                                |
| FAR 52.222-21   | PROHIBITION OF SEGREGATED FACILITIES                                      |
| FAR 52.222-26   | EQUAL OPPORTUNITY                                                         |
| FAR 52.222-35   | EQUAL OPPORTUNITY FOR VETERANS                                            |
| FAR 52.222-36   | EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES                           |
| FAR 52.222-37   | EMPLOYMENT REPORTS ON VETERANS                                            |
| FAR 52.223-6    | DRUG-FREE WORKPLACE                                                       |
| FAR 52.232-23   | ASSIGNMENT OF CLAIMS                                                      |
| FAR 52.232-33   | PAYMENT BY ELECTRONIC FUNDS TRANSFER SYSTEM – SYSTEM FOR AWARD MANAGEMENT |
| FAR 52.233-1    | DISPUTES                                                                  |
| GSAR 552.204-9  | PERSONAL IDENTITY VERIFICATION REQUIREMENTS                               |
| GSAR 552.270-12 | ALTERATIONS                                                               |
| GSAR 552.270-16 | ADJUSTMENT FOR VACANT PREMISES                                            |
| GSAR 552.270-25 | SUBSTITUTION OF TENANT AGENCY                                             |
| GSAR 552.270-28 | MUTUALITY OF OBLIGATION                                                   |
| GSAR 552.270-31 | PROMPT PAYMENT                                                            |

The information collection requirements contained in this solicitation/contract, that are not required by regulation, have been approved by the Office of Management and Budget pursuant to the Paperwork Reduction Act and assigned the OMB Control No. 3090-0086.

LESSOR:\_\_\_\_\_ GOVERNMENT:\_\_\_\_\_

EXHIBIT D

1. GSAR 552.270-4 DEFINITIONS (AUG 2023) (DEVIATION)

When a solicitation or contract uses a word or term that is defined in the Federal Acquisition Regulation (FAR) or General Services Acquisition Manual (GSAM), the word or term has the same meaning as the definition in FAR 2.101, GSAM 502.101, or GSAM 570.102 in effect at the time the solicitation was issued or lease contract was awarded, unless -

- (a) The solicitation, amended solicitation, or lease contract provides a different definition (e.g., R100, L100);
- (b) An applicable part, subpart, or section of the FAR or GSAM provides a different meaning.

2. GSAR 552.270-6 MAINTENANCE OF THE PROPERTY, RIGHT TO INSPECT (SEP 2022) (DEVIATION)

The Lessor shall maintain the property, including the building, building systems, and all equipment, fixtures, and appurtenances furnished by the Lessor under this lease, in good repair and tenantable condition so that they are suitable in appearance and capable of supplying such heat, air conditioning, light, ventilation, safety systems, access and other things to the premises, without reasonably preventable or recurring disruption, as is required for the Government's access to, occupancy, possession, use and enjoyment of the premises as provided in this lease.

- (a) For the purpose of so maintaining the premises, the Lessor may at reasonable times enter the premises with the approval of the authorized Government representative in charge.
- (b) Upon request of the Lease Contracting Officer (LCO), the Lessor shall provide written documentation that building systems have been properly maintained, tested, and are operational within manufacturer's warranted operating standards.
- (c) The Lessor shall maintain the premises in a safe and healthful condition according to applicable OSHA standards and all other requirements of this lease, including standards governing indoor air quality, existence of mold and other biological hazards, presence of hazardous materials, etc.
- (d) The Government shall have the right, at any time after the lease award date and during the term of the lease, to inspect all areas of the property to which access is necessary for the purpose of determining the Lessor's compliance with this clause.

3. GSAR 552.270-7 FIRE AND CASUALTY DAMAGE (SEP 2022) (DEVIATION)

- (a) If the building in which the premises are located is totally destroyed or damaged by fire or other casualty, this lease shall immediately terminate.
- (b) If the building in which the premises are located are only partially destroyed or damaged, so as to render the premises untenable, or not usable for their intended purpose:
  - (1) The Lessor shall have the option to elect to repair and restore the premises or terminate the lease.
  - (2) Unless otherwise approved by the Lease Contracting Officer, the Lessor shall be permitted a reasonable amount of time, not to exceed 270 days from the event of destruction or damage, to repair or restore the premises, provided that the Lessor submits to the Government a reasonable schedule for repair of the premises within 60 days of the event of destruction or damage.
    - (i) If the Lessor fails to timely submit a reasonable schedule for completing the work, the Government may elect to terminate the lease effective as of the date of the event of destruction or damage.

LESSOR:\_\_\_\_\_ GOVERNMENT:\_\_\_\_\_

EXHIBIT D

(ii) If the Lessor elects to repair or restore the premises, but fails to repair or restore the premises within 270 days from the event of destruction or damage, or fails to diligently pursue such repairs or restoration so as to render timely completion commercially impracticable, the Government may terminate the lease effective as of the date of the destruction or damage.

(3) During the time that the premises are unoccupied, rent shall be abated. Termination of the lease by either party under this clause shall not give rise to liability for either party.

(4) Nothing in this lease shall be construed as relieving Lessor from liability for damage to or destruction of property of the United States of America caused by the willful or negligent act or omission of Lessor.

4. GSAR 552.270-9 INSPECTION – RIGHT OF ENTRY (SEP 1999)

a) At any time and from time to time after receipt of an offer (until the same has been duly withdrawn or rejected), after acceptance thereof and during the term, the agents, employees and contractors of the Government may, upon reasonable prior notice to Offeror or Lessor, enter upon the offered premises or the premises, and all other areas of the building access to which is necessary to accomplish the purposes of entry, to determine the potential or actual compliance by the Offeror or Lessor with the requirements of the solicitation or this lease, which purposes shall include, but not be limited to:

(1) Inspecting, sampling and analyzing suspected asbestos-containing materials and air monitoring for asbestos fibers;

(2) Inspecting the heating, ventilation and air conditioning system, maintenance records, and mechanical rooms for the offered premises or the premises;

(3) Inspecting for any leaks, spills, or other potentially hazardous conditions which may involve tenant exposure to hazardous or toxic substances; and

(4) Inspecting for any current or past hazardous waste operations, to ensure that appropriate mitigative actions were taken to alleviate any environmentally unsound activities in accordance with Federal, State and local law.

b) Nothing in this clause shall be construed to create a Government duty to inspect for toxic materials or to impose a higher standard of care on the Government than on other lessees. The purpose of this clause is to promote the ease with which the Government may inspect the building. Nothing in this clause shall act to relieve the Lessor of any duty to inspect or liability which might arise as a result of Lessor's failure to inspect for or correct a hazardous condition.

5. GSAR 552.270-10 DEFAULT BY LESSOR (JUL 2023) (DEVIATION)

Occurrence of the following constitutes default by the Lessor and gives rise to the following rights and remedies of the Government:

(a) *Prior to acceptance of the space.* Failure by the Lessor to perform diligently any obligations required for acceptance of the space or other required improvements within the times specified, other than due to an excusable delay, shall constitute a default by the Lessor. Subject to provision of notice of default to the Lessor, and provision of a reasonable opportunity for the Lessor to cure its default, the Government may, in its sole discretion, terminate the lease on account of the Lessor's default.

LESSOR:\_\_\_\_\_ GOVERNMENT:\_\_\_\_\_

EXHIBIT D

- (b) *After acceptance of the space.* Failure by the Lessor to perform any service, to provide any item, or satisfy any requirement of this lease, other than due to an excusable delay, constitutes a default by the Lessor. Subject to provision of notice of default to the Lessor, and provision of a reasonable opportunity for the Lessor to cure its default, the Government may, in its sole discretion, take one or more of the following actions:
- (1) Perform the service, provide the item, or obtain satisfaction of the requirement by its own employees or contractors. If the Government elects to take such action, the Government may deduct from rental payments its costs, including administrative costs, incurred in connection with taking the action;
  - (2) Reduce the rent by an amount reasonably calculated to approximate the cost or value of the service not performed, item not provided, or requirement not satisfied, such reduction effective as of the date of the commencement of the default condition. If default renders the leased premises untenable, the reduction of rent may be calculated as the prorated portion of the monthly rent represented by all such days the leased premises is untenable;
  - (3) Terminate the lease if:
    - (i) The Lessor's default persists notwithstanding provision of notice and reasonable opportunity to cure by the Government, or
    - (ii) The Lessor fails to take such actions as are necessary to prevent the recurrence of default conditions, and such conditions substantially impair the safe and healthful occupancy of the premises, or render the premises unusable for its intended purposes.
- (c) *Damages.* The Lessor and the Lessor sureties, if any, are jointly and severally liable for any damages to the Government resulting from default or termination, as provided in this clause.
- (1) Damages include all costs associated with the replacement lease(s), which include but are not limited to the following: the Government's aggregate rent, estimated real estate taxes, operating costs, administrative costs, or other procurement costs.
  - (2) If the Government procures replacement premises for a term (including all option terms) in excess of this lease term, the Lessor is not liable for excess Government rent or adjustments during such excess lease term.
  - (3) Damages to which the Government is entitled to under this clause are due and payable thirty (30) days following the date the Lessor receives notice from the Contracting Officer specifying such damages.
- (d) *Excusable delays.*
- (1) The Government shall not terminate this lease under this clause nor charge the Lessor with damages under this clause, if:
    - (i) the delay in substantially completing any work or performing any services arises from excusable delays, and
    - (ii) the Lessor, within ten (10) days from the beginning of any such delay (unless extended in writing by the Contracting Officer) provides notice to the Contracting Officer of the causes of delay.

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(2) The Contracting Officer shall ascertain the facts and the extent of delay. If the facts warrant, the Contracting Officer shall extend the delivery date commensurate with the delay at no additional costs to the Government. A time extension is the sole remedy of the Lessor.

(e) No deduction from rent, termination of lease, or any other action pursuant to this clause will constitute a default by the Government under this lease.

(f) The rights and remedies specified in this clause are in addition to any and all remedies to which the Government may be entitled as a matter of law.

6. GSAR 552.270-20 PAYMENT (AUG 2023) (DEVIATION)

(a) When space is offered and accepted, ANSI/BOMA Occupant Area (ABOA) square footage delivered will be confirmed by either:

(1) The Government's measurement of plans submitted by the successful offeror as approved by the Government, and an inspection of the space to verify that the delivered space conforms with such plans; or

(2) A mutual on-site measurement of the space if the Contracting Officer determines it necessary.

(b) The Government will not pay for space in excess of the amount of ABOA square footage stated in the lease.

(c) If the amount of ABOA square footage delivered is less than the amount agreed to in the lease, the lease will be modified to reflect the amount of ABOA space delivered and the annual rental will be adjusted as follows:

ABOA square feet not delivered multiplied by one plus the common area factor (CAF), multiplied by the rate per rentable square foot (RSF). That is:

$$(1 + \text{CAF}) \times \text{Rate per RSF} = \text{Reduction in Annual Rent}$$

(d) *Common Area Factor (CAF)*. The CAF is expressed as a percentage of the difference between the amount of rentable square feet (SF) and ABOA SF, divided by the ABOA SF. For example 11,500 RSF and 10,000 ABOA SF will have a CAF of 15%  $(11,500 \text{ RSF} - 10,000 \text{ ABOA SF}) / 10,000 \text{ ABOA SF}$ .

(e) *Rentable Square Footage (RSF)*. The RSF is calculated using the following formula for each type of space (e.g., office, warehouse, etc.) included in the premises:  $\text{ABOA SF of Space} \times (1 + \text{CAF}) = \text{RSF}$ .

7. GSAR 552.270-27 INTEGRATED AGREEMENT (SEP 2022) (DEVIATION)

This lease, upon execution, contains the entire agreement of the parties and no prior written or oral agreement, express or implied, shall be admissible to contradict the provisions of the lease. Except as expressly attached to and made a part of the lease, neither the request for lease proposals nor any pre-award communications by either party shall be incorporated in the lease.

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8. GSAR 552.270-14 CHANGES (SEP 2022) (DEVIATION)

- (a) The Lease Contracting Officer (LCO) may at any time, by written order, direct changes to the tenant improvements within the space, building security requirements, or the services required under the lease.
- (b) If any such change causes an increase or decrease in Lessor's cost or time required for performance of its obligations under this lease, whether or not changed by the order, the Lessor shall be entitled to an amendment to the lease providing for one or more of the following:
  - (1) An adjustment of the delivery date.
  - (2) An equitable adjustment in the rental rate.
  - (3) A lump sum equitable adjustment. or
  - (4) An adjustment of the operating cost base, if applicable.
- (c) The Lessor must assert its right to an amendment under this clause within 30 days from the date of receipt of the change order and must submit a proposal for adjustment. Failure to agree to any adjustment shall be a dispute under the Disputes clause. However, the pendency of an adjustment or existence of a dispute shall not excuse the Lessor from proceeding with the change as directed.
- (d) Absent a written change order from the LCO, or from a Government official to whom the LCO has explicitly and in writing delegated the authority to direct changes, the Government is not liable to Lessor under this clause.

9. GSAR 552.270-8 COMPLIANCE WITH APPLICABLE LAW (SEP 2022) (DEVIATION)

Lessor shall comply with all Federal, state, tribal, and local laws applicable to its ownership and leasing of the property, including, without limitation, laws applicable to the construction, ownership, alteration or operation of all buildings, structures, and facilities located thereon, and obtain all necessary permits, licenses and similar items at its own expense. The Government will comply with all Federal, state, tribal, and local laws applicable to and enforceable against it as a tenant under this lease, provided that nothing in this lease shall be construed as a waiver of the sovereign immunity of the Government. This lease shall be governed by Federal law.

10. FAR 52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (NOV 2021)

(a) *Definitions.* As used in this clause—

*Covered contractor information system* means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

*Federal contract information* means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public websites) or simple transactional information, such as necessary to process payments.

*Information* means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

*Information system* means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information ( [44 U.S.C. 3502](#)).

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*Safeguarding* means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (*i.e.*, information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) *Other requirements.* This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

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(c) *Subcontracts*. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

11. FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

<https://www.acquisition.gov/browse/index/gsam>.

12. The following clauses are incorporated by reference:

|                |                                                                                                                                                                                                   |
|----------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| FAR 52.204-2   | SECURITY REQUIREMENTS (MAR 2021) (Applicable when the contract may require access to classified information.)                                                                                     |
| FAR 52.204-9   | PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)                                                                                                                                 |
| FAR 52.204-10, | REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (JUN 2020) (Applicable if over \$30,000 total contract value.)                                                                 |
| FAR 52.204-13  | SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)                                                                                                                                                |
| FAR 52.204-19  | INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)                                                                                                                       |
| FAR 52.204-23  | PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (NOV 2021)                                                      |
| FAR 52.204-25  | PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)                                                                                 |
| FAR 52.204-27  | PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)                                                                                                                                         |
| FAR 52.209-6   | PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT (NOV 2021)<br>(Applicable to leases over \$35,000 total contract value.) |
| FAR 52.215-10  | PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA (AUG 2011)<br>(Applicable when cost or pricing data are required for work or services over \$2,000,000.)                             |
| FAR 52.215-12  | SUBCONTRACTOR CERTIFIED COST OR PRICING DATA (JUN 2020)<br>(Applicable when the clause at FAR 52.215-10 is applicable.)                                                                           |
| FAR 52.219-4   | NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (OCT 2022)                                                                                                              |

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|                 |                                                                                                                                                                                                                      |
|-----------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| FAR 52.219-9    | SMALL BUSINESS SUBCONTRACTING PLAN (OCT 2022) ALTERNATE III (JUN 2020) (Applicable to Leases over \$750,000 total contract value.)                                                                                   |
| FAR 52.219-16   | LIQUIDATED DAMAGES—SUBCONTRACTING PLAN (SEP 2021) (Applicable to leases over \$750,000 total contract value.)                                                                                                        |
| FAR 52.219-28   | POST-AWARD SMALL BUSINESS REREPRESENTATION (MAR 2023) (Applicable to leases exceeding the micro-purchase threshold)                                                                                                  |
| FAR 52.222-21   | PROHIBITION OF SEGREGATED FACILITIES (APR 2015)                                                                                                                                                                      |
| FAR 52.222-26   | EQUAL OPPORTUNITY (SEP 2016)                                                                                                                                                                                         |
| FAR 52.222-35   | EQUAL OPPORTUNITY FOR VETERANS (JUN 2020) (Applicable to leases \$150,000 or more, total contract value. Full text may be found at <a href="http://www.acquisition.gov">http://www.acquisition.gov</a> )             |
| FAR 52.222-36   | EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (JUN 2020) (Applicable to leases over \$15,000 total contract value. Full text may be found at <a href="http://www.acquisition.gov">http://www.acquisition.gov</a> ) |
| FAR 52.222-37   | EMPLOYMENT REPORTS ON VETERANS (JUN 2020) (Applicable to leases \$150,000 or more, total contract value.)                                                                                                            |
| FAR 52.223-6    | DRUG-FREE WORKPLACE (MAY 2001) (Applicable to Leases over the Simplified Lease Acquisition Threshold as well as to any Leases of any value awarded to an individual)                                                 |
| FAR 52.232-23   | ASSIGNMENT OF CLAIMS (MAY 2014) (Applicable to leases over the micro-purchase threshold.)                                                                                                                            |
| FAR 52.232-33   | PAYMENT BY ELECTRONIC FUNDS TRANSFER - SYSTEM FOR AWARD MANAGEMENT (OCT 2018)                                                                                                                                        |
| FAR 52.233-1    | DISPUTES (MAY 2014)                                                                                                                                                                                                  |
| GSAR 552.204-9  | PERSONAL IDENTITY VERIFICATION REQUIREMENTS (APR 2023)                                                                                                                                                               |
| GSAR 552.270-12 | ALTERATIONS (SEP 1999)                                                                                                                                                                                               |
| GSAR 552.270-16 | ADJUSTMENT FOR VACANT PREMISES (JUN 2011)                                                                                                                                                                            |
| GSAR 552.270-25 | SUBSTITUTION OF TENANT AGENCY (SEP 1999)                                                                                                                                                                             |
| GSAR 552.270-28 | MUTUALITY OF OBLIGATION (SEP 1999)                                                                                                                                                                                   |
| GSAR 552.270-31 | PROMPT PAYMENT (JUN 2011)                                                                                                                                                                                            |

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